

IAS PRELIMS/MAINS



SCIENCE & TECHNOLOGY



A COMPREHENSIVE COVERAGE

MODULE - 27

INFORMATION & COMMUNICATION TECHNOLOGY (ICT) - 8

THE JUSTICE BN SRIKRISHNA COMMITTEE REPORT - A FREE AND FAIR DIGITAL ECONOMY – PROTECTING PRIVACY, EMPOWERING INDIANS, 2018

- A committee headed by retired Supreme Court Judge Justice BN Srikrishna has submitted its report on "Data Protection Framework" to the Government.
- The Committee was constituted by the union government in July 2017, to deliberate on a data protection framework.
- The Supreme Court in its Puttaswamy judgment, 2017 declared privacy a fundamental right. This set the government in motion to take steps to bring a new data protection legislation for the country.
- The report has emphasized that interests of the citizens and the responsibilities of the state have to be protected, but not at the cost of trade and industry.
- The Committee has also proposed a draft Personal Data Protection Bill.



DETAILS OF THE REPORT

FIDUCIARY RELATIONSHIP

- The Committee noted that the relationship between the individual and the service provider must be viewed as a fiduciary relationship.
- This is due to the dependence of the individual on the service provider to obtain a service.
- Therefore, the service provider processing the data is under an obligation to deal fairly with the individual's personal data, and use it for the authorized purposes only.

OBLIGATIONS OF FIDUCIARIES

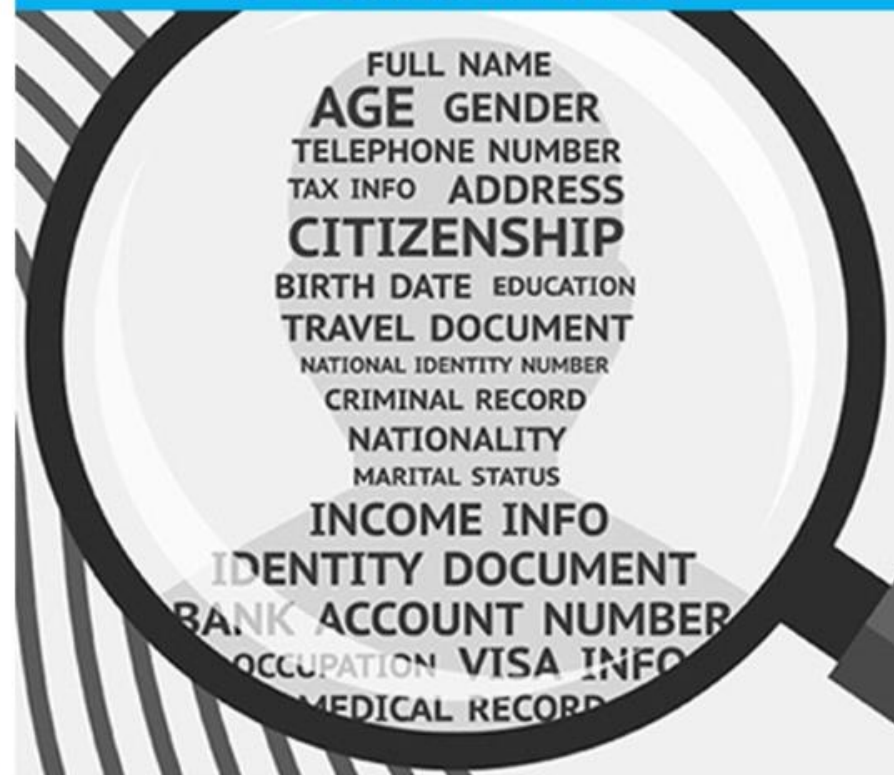
- To prevent abuse of power by service providers, the law should establish their basic obligations, including:
 - I. The obligation to process data fairly and reasonably, and
 - II. The obligation to give notice to the individual at the time of collecting data to various points in the interim.

DETAILS OF THE REPORT

DEFINITION OF PERSONAL DATA

- The Committee noted that it is important to define what constitutes personal information. It defined personal data to include data from which an individual may be identified or identifiable, either directly or indirectly.
- The Committee sought to distinguish personal data protection from the protection of sensitive personal data, since its processing could result in greater harm to the individual.
- Sensitive data is related to intimate matters where there is a higher expectation of privacy (e.g., caste, religion, and sexual orientation of the individual).

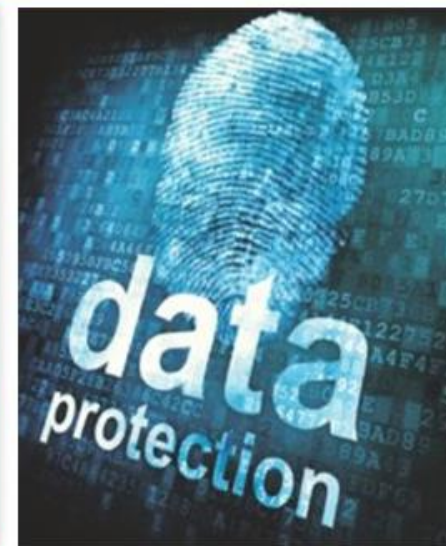
PERSONAL DATA IS EVERYWHERE... IS YOUR DATA SAFE?



DETAILS OF THE REPORT

NON-CONSENSUAL PROCESSING

- The Committee noted that it is not possible to obtain consent of the individual in all circumstances. Therefore, separate grounds may be established for processing data without consent.
- The Committee identified four bases for non-consensual processing:
 - i. Where processing is relevant for the state to discharge its welfare functions.
 - ii. To comply with the law or with court orders in India.
 - iii. When necessitated by the requirement to act promptly (to save a life, for instance) and
 - iv. In employment contracts, in limited situations (such, as where giving the consent requires an unreasonable effort for the employer).



DETAILS OF THE REPORT

RESTRICTIONS ON PROCESSING AND COLLECTION OF PERSONAL DATA

- The committee recommends that processing (collection, recording, analysis, disclosure, etc.) of personal data should be done only for “clear, specific and lawful” purposes.
- Only that data which is necessary for such processing is to be collected from anyone.



DETAILS OF THE REPORT

PROCESSING OF PERSONAL DATA FOR “FUNCTIONS OF THE STATE”

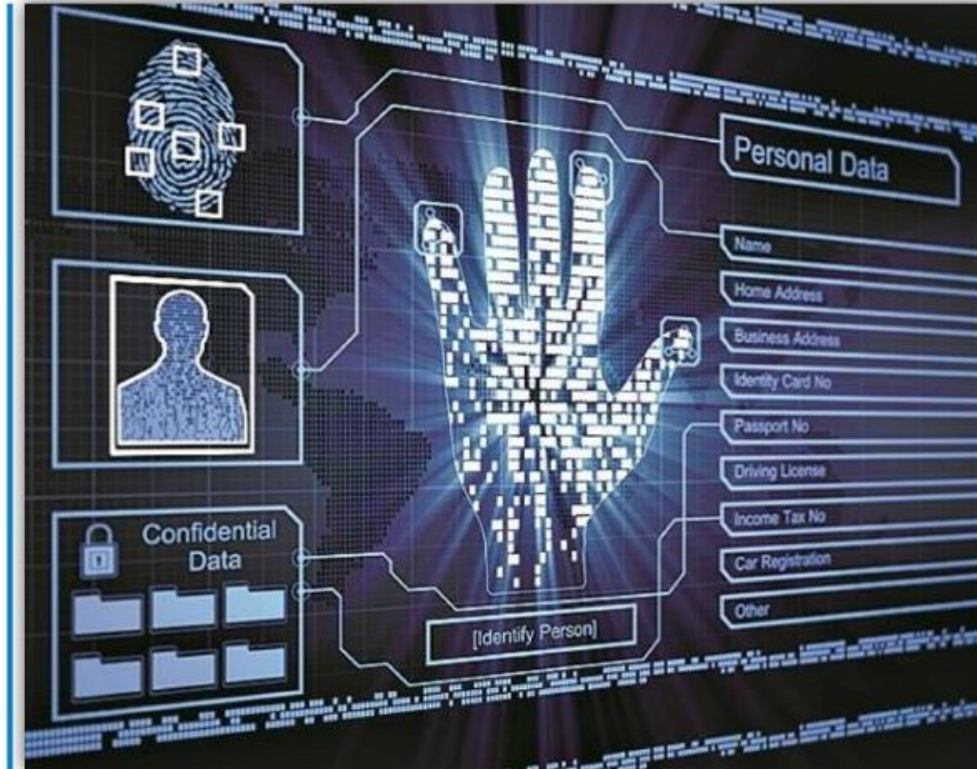
- One of the more problematic suggestions of the committee is that they suggest that your personal data may be processed by the government if this is considered necessary for any function of Parliament or State Legislature.
- This includes provision of services, issuing of licenses, etc.



DETAILS OF THE REPORT

RIGHT TO BE FORGOTTEN

- The committee recommends giving “data principals” (persons whose personal data is being processed) the ‘right to be forgotten’.
- This means they will be able to restrict or prevent any display of their personal data once the purpose of disclosing the data has ended, or when the data principal withdraws consent from disclosure of their personal data.



DETAILS OF THE REPORT

DATA LOCALISATION

- Personal data will need to be stored on servers located within India, and transfers outside the country will need to be subject to safeguards.
- Critical personal data, however, will only be processed in India.



DETAILS OF THE REPORT

PROCESSING OF SENSITIVE PERSONAL DATA TO REQUIRE EXPLICIT CONSENT

- The Committee recommends that “sensitive” personal data (such as passwords, financial data, sexual orientation, biometric data, religion or caste) should not be processed unless someone gives explicit consent – which factors in the purpose of processing.
- So, if you have disclosed your sexual orientation in a survey where you were told it would be used to assess the numbers of people with such orientation in a particular place, your name and orientation cannot then be sent to an advertising agency to send you targeted ads, as this is different from the purpose you had agreed on.



DETAILS OF THE REPORT

DATA PROTECTION AUTHORITY

- The Committee has recommended setting up a Data Protection Authority which is supposed to “protect the interests of data principals”, prevent misuse of personal data and ensure compliance with the safeguards and obligations under the data protection framework by corporations, governments or anyone else processing personal data (known as “data fiduciaries”).
- The obligations on data fiduciaries include conducting audits and ensuring they have a data protection officer and grievance redressal mechanism – the Authority will need to publish Codes of Practice on all these points.
- The Authority shall have the power to inquire into any violations of the data protection regime, and can take action against any data fiduciaries responsible for the same.



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